

Manu Sharma v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 25 January 2024 · 2024:AHC:12462-DB · Writ - C No. 38882 of 2023 · **Disposed as infructuous after full OTS deposit**

HEADNOTE

Writ seeking a direction to decide a representation dated 29.08.2023 under clause 6.3 of the U.P. Electricity Supply Code, 2005, disposed of as infructuous. Counsel for the electricity department stated that the petitioner had availed the one-time settlement scheme and deposited the entire amount, so the cause did not survive. The Court did not construe clause 6.3 or Annexure 6.3.

FACTUAL SUMMARY

Manu Sharma sought a direction that the electricity authority decide his representation of 29 August 2023 under clause 6.3 of the U.P. Electricity Supply Code, 2005, contending that the final assessment was not calculated as per Annexure 6.3. On 8 November 2023 the Court ordered that a deposit of Rs. 25,000 would restrain coercive action during the writ. After two dates on which no one appeared for the petitioner, counsel for the electricity department stated on 25 January 2024 that he had availed the one-time settlement scheme and deposited the entire amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.3

Writ to decide a clause 6.3 representation after OTS payment

HOLDING

Where the electricity department states that the petitioner has availed the one-time settlement scheme and deposited the entire amount, a writ seeking a direction to decide his representation dated 29.08.2023 in accordance with clause 6.3 of the U.P. Electricity Supply Code, 2005, does not survive and is disposed of as infructuous. ¶ 1-4

FLAG 8.11.2023 order invokes Annexure 6.3; 25.01.2024 order invokes Clause 6.3; the Court did not reconcile the two

PRINCIPLE TAGS

writ-infructuous-after-ots-deposit On the electricity department's statement that the petitioner had taken the one-time settlement and paid the entire amount, the Division Bench held that the writ for a decision of the 29.08.2023 representation under clause 6.3 did not survive, and disposed of it as infructuous without construing the Code. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT ACCORDED WITH ANNEXURE 6.3, AND WHETHER THE REPRESENTATION DATED 29.08.2023 HAD TO BE DECIDED UNDER CLAUSE 6.3

The 8.11.2023 order only restrained coercive action on deposit of Rs. 25,000. The assessment and the representation were not examined once the petition was disposed as infructuous. ¶ 3-4